

HEADNOTE

“A non-appealed order by the Court of First Instance pursuant to R.262A RoP that restricts access to certain information or evidence to specific persons, unless otherwise stated in the order, continues to apply after the proceedings, and therefore applies also to the appeal proceedings. There is no need for a new order pursuant to R.262A RoP if the same information or evidence that is already protected by a R.262A RoP order is contained in another statement or document lodged in the appeal proceedings.”

COURT

Court of Appeal Luxembourg

PROCEEDINGS

Application for provisional measures

PATENT

EP 2 697 391

METHOD AND PRODUCT FOR

LOCALISED OR SPATIAL

DETECTION OF NUCLEIC ACID IN A

TISSUE SAMPLE

KEYWORDS

R. 262A RoP – protection of confidential inf...

Rule 262A

Protection of Confidential Information

SUMMARY

The Court of Appeal Luxembourg ruled on an application for provisional measures. The patent at issue relates to a method and product for localised or spatial detection of nucleic acid in a tissue sample. According to the headnotes of the decision, when the Court of First Instance issues an order restricting access to certain information or evidence under the Rules of Procedure, that protection continues to apply in appeal proceedings without requiring a new order, even if the same protected information appears in other documents submitted during the appeal.